

JUSTICE AS FAIRNESS

A R E S T A T E M E N T



JOHN RAWLS

EDITED BY ERIN KELLY

JUSTICE AS FAIRNESS

A Restatement

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A RESTATEMENT

John Rawls

Edited by Erin Kelly

THE BELKNAP PRESS OF
HARVARD UNIVERSITY PRESS

Cambridge, Massachusetts

London, England

2001

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Printed in the United States of America

Library of Congress Cataloging-in-Publication Data

Rawls, John, 1921–

Justice as fairness : a restatement / John Rawls ; edited by Erin Kelly.

p. cm.

Includes bibliographical references and index.

ISBN 0-674-00510-4 (cloth : alk. paper)—ISBN 0-674-00511-2 (pbk. : alk. paper)

1. Justice. 2. Fairness. I. Kelly, Erin. II. Title.

JC578 .R3693 2001

320'.01'1—dc21

00-065034

structure does not imply that we cannot revise our account for a democratic society (domestic justice) in view of what justice between peoples turns out to require. The two parts of a more complete political conception—the justice of domestic society as well as of the relations between societies—can be adjusted to each other in the course of working them out.

5.2. Finally, I stress a point implicit in what we have said: namely, that justice as fairness is not a comprehensive religious, philosophical, or moral doctrine—one that applies to all subjects and covers all values. Nor is it to be regarded as the application of such a doctrine to the basic structure of society, as if this structure were merely another subject to which that comprehensive view is to be applied. Neither political philosophy nor justice as fairness is, in that way, applied moral philosophy. Political philosophy has its own distinctive features and problems. Justice as fairness is a political conception of justice for the special case of the basic structure of a modern democratic society. In this respect it is much narrower in scope than comprehensive philosophical moral doctrines such as utilitarianism, perfectionism, and intuitionism, among others. It focuses on the political (in the form of the basic structure), which is but a part of the domain of the moral.

§6. The Idea of the Original Position

6.1. So far we have discussed three fundamental ideas introduced in *Theory*, §§1–2, the idea of a society as a fair system of cooperation and the idea of a well-ordered society, and the idea of the basic structure of society. Next we discuss two other fundamental ideas, introduced in *Theory*, §§3–4. One is the idea of the original position; the other is the idea of citizens as free and equal persons. The sixth fundamental idea, that of public justification, is discussed in §§9–10.

Let us begin with how we might be led to the original position and the reasons for using it. The following line of thought might lead us to it: we start with the organizing idea of society as a fair system of cooperation between free and equal persons. Immediately the question arises as to how the fair terms of cooperation are specified. For example: Are they specified by an authority distinct from the persons cooperating, say, by God's law? Or are these terms recognized by everyone as fair by reference to a moral order of values,¹⁴ say, by rational intuition, or by reference to what some

14. This order I assume to be viewed as objective as in some form of moral realism.

have viewed as “natural law”? Or are they settled by an agreement reached by free and equal citizens engaged in cooperation, and made in view of what they regard as their reciprocal advantage, or good?

Justice as fairness adopts a form of the last answer: the fair terms of social cooperation are to be given by an agreement entered into by those engaged in it. One reason it does this is that, given the assumption of reasonable pluralism, citizens cannot agree on any moral authority, say a sacred text or a religious institution or tradition. Nor can they agree about a moral order of values or the dictates of what some view as natural law. So what better alternative is there than an agreement between citizens themselves reached under conditions that are fair for all?

6.2. Now this agreement, like any other, must be entered into under certain conditions if it is to be a valid agreement from the point of view of political justice. In particular, these conditions must situate free and equal persons fairly and must not permit some to have unfair bargaining advantages over others. Further, threats of force and coercion, deception and fraud, and so on must be ruled out. So far, so good. These considerations are familiar from everyday life. But agreements in everyday life are made in determinate situations within the background institutions of the basic structure; and the particular features of these situations affect the terms of the agreements reached. Clearly, unless those situations satisfy the conditions for valid and fair agreements, the terms agreed to will not be regarded as fair.

Justice as fairness hopes to extend the idea of a fair agreement to the basic structure itself. Here we face a serious difficulty for any political conception of justice that uses the idea of contract, whether or not the contract is social. The difficulty is this: we must specify a point of view from which a fair agreement between free and equal persons can be reached; but this point of view must be removed from and not distorted by the particular features and circumstances of the existing basic structure. The original position, with the feature I have called the “veil of ignorance” (*Theory*, §24), specifies this point of view. In the original position, the parties are not allowed to know the social positions or the particular comprehensive doctrines of the persons they represent. They also do not know persons’ race and ethnic group, sex, or various native endowments such as strength and intelligence, all within the normal range. We express these limits on information figuratively by saying the parties are behind a veil of ignorance.¹⁵

15. [See Rawls, *Political Liberalism* (New York: Columbia University Press, 1993), pp. 24–25.]

One reason why the original position must abstract from the contingencies—the particular features and circumstances of persons—within the basic structure is that the conditions for a fair agreement between free and equal persons on the first principles of justice for that structure must eliminate the bargaining advantages that inevitably arise over time within any society as a result of cumulative social and historical tendencies. “To persons according to their threat advantage” (or their de facto political power, or wealth, or native endowments) is not the basis of political justice. Contingent historical advantages and accidental influences from the past should not affect an agreement on principles that are to regulate the basic structure from the present into the future.¹⁶

6.3. The idea of the original position is proposed, then, as the answer to the question of how to extend the idea of a fair agreement to an agreement on principles of political justice for the basic structure. That position is set up as a situation that is fair to the parties as free and equal, and as properly informed and rational. Thus any agreement made by the parties as citizens’ representatives is fair. Since the content of the agreement concerns the principles of justice for the basic structure, the agreement in the original position specifies the fair terms of social cooperation between citizens regarded as such persons. Hence the name: justice as fairness.

Observe that, as stated in *Theory*, the original position generalizes the familiar idea of the social contract (*Theory*, §3). It does so by making the object of agreement the first principles of justice for the basic structure, rather than a particular form of government, as in Locke. The original position is also more abstract: the agreement must be regarded as both hypothetical and nonhistorical.

- (i) It is hypothetical, since we ask what the parties (as described) could, or would, agree to, not what they have agreed to.
- (ii) It is nonhistorical, since we do not suppose the agreement has ever,

16. This is an essential feature of justice as fairness as a form of the contract doctrine. It differs from Locke’s view in this respect, and also from the contract views of Robert Nozick in *Anarchy, State, and Utopia* (New York: Basic Books, 1974), of James Buchanan in *The Limits of Liberty* (Chicago: University of Chicago Press, 1975), and of David Gauthier in *Morals by Agreement* (Oxford: Oxford University Press, 1986). In these three works citizens’ basic rights, liberties, and opportunities, as secured by the basic structure, depend on contingencies of history, and social circumstance and native endowment, in ways excluded by justice as fairness. We come back to this in §16.1.

or indeed ever could actually be entered into. And even if it could, that would make no difference.

The second point (ii) means that what principles the parties would agree to is to be decided by analysis. We characterize the original position by various stipulations—each with its own **reasoned backing**—so that the agreement that would be reached can be worked out deductively by reasoning from how the parties are situated and described, the alternatives open to them, and from what the parties count as reasons and the information available to them. We return to this in Part III.

6.4. Here there may seem to be a serious objection: since **hypothetical agreements are not binding at all, the agreement of the parties in the original position would appear to be of no significance.**¹⁷ In reply, the significance of the original position lies in the fact that it is a **device of representation** or, alternatively, a thought-experiment for the **purpose of public- and self-clarification**. We are to think of it as modeling two things:

First, it **models what we regard—here and now—as fair conditions under which the representatives of citizens, viewed solely as free and equal persons, are to agree to the fair terms of cooperation whereby the basic structure is to be regulated.**

Second, it models what we regard—here and now—as **acceptable restrictions on the reasons on the basis of which the parties, situated in fair conditions, may properly put forward certain principles of political justice and reject others.**

Thus if the original position suitably models our convictions about these two things (namely, fair conditions of agreement between citizens as free and equal, and appropriate restrictions on reasons), we conjecture that the principles of justice the parties would agree to (could we properly work them out) would specify the terms of cooperation that we regard—here and now—as fair and supported by the best reasons. This is because, in that case, the original position would have succeeded in modeling in a suitable

17. This question is discussed by Ronald Dworkin in §1 of his critical review entitled “Justice and Rights,” *University of Chicago Law Review* (1973), reprinted in *Taking Rights Seriously* (Cambridge, Mass.: Harvard University Press, 1977), as chap. 6. I have discussed his interpretation briefly in “Justice as Fairness: Political Not Metaphysical,” *Philosophy and Public Affairs* 14 (Summer 1985): 236f., n. 19; reprinted in Rawls, *Collected Papers*, ed. Samuel Freeman (Cambridge, Mass.: Harvard University Press, 1999), 400f., n. 19.

of the political liberties as well as **fair equality of opportunity**. We look outside the sphere of **distributive justice** more narrowly construed to see whether an appropriate distributive principle is singled out by those firmest convictions once their essential elements are represented in the original position as a device of representation (§6). This device is to assist us in working out which principle, or principles, the representatives of free and equal citizens would select to regulate social and economic inequalities in these prospects over a complete life when they assume that the equal basic liberties and fair opportunities are already secured.

The idea here is to use our **firmest considered convictions about the nature of a democratic society as a fair system of cooperation between free and equal citizens—as modeled in the original position—to see whether the combined assertion of those convictions so expressed will help us to identify an appropriate distributive principle for the basic structure with its economic and social inequalities in citizens’ life-prospects**. Our convictions about principles regulating those inequalities are much less firm and assured; so we look to our firmest convictions for guidance where assurance is lacking and guidance is needed (*Theory*, §§4, 20).

§13. Two Principles of Justice

13.1. To try to answer our question, let us turn to a revised statement of the two principles of justice discussed in *Theory*, §§11–14. They should now read:²

- (a) Each person has the same **indefeasible claim** to a fully adequate scheme of equal basic liberties, which scheme is compatible with the same scheme of liberties for all; and
- (b) **Social and economic inequalities are to satisfy two conditions**: first, they are to be **attached to offices and positions** open to all under conditions of **fair equality of opportunity**; and second, they are to

2. This section summarizes some points from “The Basic Liberties and Their Priority,” *Tanner Lectures on Human Values*, vol. 3, ed. Sterling McMurrin (Salt Lake City: University of Utah Press, 1982), §I, reprinted in *Political Liberalism*. In that essay I try to reply to what I believe are two of the more serious objections to my account of liberty in *Theory* raised by H. L. A. Hart in his splendid critical review essay, “Rawls on Liberty and Its Priority,” *University of Chicago Law Review* 40 (Spring 1973): 551–555, reprinted in his *Essays in Jurisprudence and Philosophy* (Oxford: Oxford University Press, 1983). No changes made in justice as fairness in this restatement are more significant than those forced by Hart’s review.

be to the greatest benefit of the least-advantaged members of society (the difference principle).³

As I explain below, the first principle is prior to the second; also, in the second principle fair equality of opportunity is prior to the difference principle. This priority means that in applying a principle (or checking it against test cases) we assume that the prior principles are fully satisfied. We seek a principle of distribution (in the narrower sense) that holds within the setting of background institutions that secure the basic equal liberties (including the fair value of the political liberties)⁴ as well as fair equality of opportunity. How far that principle holds outside that setting is a separate question we shall not consider.⁵

13.2. The revisions in the second principle are merely stylistic. But before noting the revisions in the first principle, which are significant, we should attend to the meaning of fair equality of opportunity. This is a difficult and not altogether clear idea; its role is perhaps best gathered from why it is introduced: namely, to correct the defects of formal equality of opportunity—careers open to talents—in the system of natural liberty, so-called (*Theory*, §12: 62ff.; §14). To this end, fair equality of opportunity is said to require not merely that public offices and social positions be open in the formal sense, but that all should have a fair chance to attain them. To

3. Instead of “the difference principle,” many writers prefer the term “the maximin principle,” or simply “maximin justice,” or some such locution. See, for example, Joshua Cohen’s very full and accurate account of the difference principle in “Democratic Equality,” *Ethics* 99 (July 1989): 727–751. But I still use the term “difference principle” to emphasize first, that this principle and the maximin rule for decision under uncertainty (§28.1) are two very distinct things; and second, that in arguing for the difference principle over other distributive principles (say a restricted principle of (average) utility, which includes a social minimum), there is no appeal at all to the maximin rule for decision under uncertainty. The widespread idea that the argument for the difference principle depends on extreme aversion to uncertainty is a mistake, although a mistake unhappily encouraged by the faults of exposition in *Theory*, faults to be corrected in Part III of this restatement.

4. See *Theory*, §36: 197–199.

5. Some have found this kind of restriction objectionable; they think a political conception should be framed to cover all logically possible cases, or all conceivable cases, and not restricted to cases that can arise only within a specified institutional context. See for example Brian Barry, *The Liberal Theory of Justice* (Oxford: Oxford University Press, 1973), p. 112. In contrast, we seek a principle to govern social and economic inequalities in democratic regimes as we know them, and so we are concerned with inequalities in citizens’ life-prospects that may actually arise, given our understanding of how certain institutions work.

specify the idea of a **fair chance** we say: supposing that there is a **distribution of native endowments**, those who have the same level of talent and ability and the same willingness to use these gifts should have the **same prospects of success regardless of their social class of origin, the class into which they are born and develop until the age of reason**. In all parts of society there are to be roughly the same prospects of culture and achievement for those similarly motivated and endowed.

Fair equality of opportunity here means **liberal equality**. To accomplish its aims, certain requirements must be imposed on the basic structure beyond those of the system of natural liberty. A **free market system** must be set within a framework of **political and legal institutions** that adjust the long-run trend of economic forces so as to prevent excessive concentrations of property and wealth, especially those **likely to lead to political domination**. Society must also establish, among other things, **equal opportunities of education for all regardless of family income (§15)**.⁶

13.3. Consider now the reasons for revising the first principle.⁷ One is that the equal basic liberties in this principle are specified by a list as follows: freedom of thought and liberty of conscience; political liberties (for example, the right to vote and to participate in politics) and freedom of association, as well as the rights and liberties specified by the liberty and integrity (physical and psychological) of the person; and finally, the rights and liberties covered by the rule of law. That the **basic liberties are specified by a list is quite clear from *Theory*, §11: 61 (1st ed.)**; but the **use of the singular term “basic liberty” in the statement of the principle on *Theory*, §11: 60 (1st ed.)**, **obscures this important feature of these liberties**.

This revision brings out that no priority is assigned to liberty as such, as if the exercise of something called “liberty” had a preeminent value and were the main, if not the sole, end of political and social justice. While there is a **general presumption against imposing legal and other restrictions on conduct without a sufficient reason, this presumption creates no special priority for any particular liberty**. Throughout the history of democratic

6. These remarks are the merest sketch of a difficult idea. We come back to it from time to time.

7. This principle may be preceded by a lexically prior principle requiring that basic needs be met, as least insofar as their being met is a necessary condition for citizens to understand and to be able fruitfully to exercise the basic rights and liberties. For a statement of such a principle with further discussion, see R. G. Peffer, *Marxism, Morality, and Social Justice* (Princeton: Princeton University Press, 1990), p. 14.

thought the focus has been on achieving certain specific rights and liberties as well as specific constitutional guarantees, as found, for example, in various bills of rights and declarations of the rights of man. Justice as fairness follows this traditional view.

13.4. A list of basic liberties can be drawn up in two ways. One is historical: we survey various democratic regimes and assemble a list of rights and liberties that seem basic and are securely protected in what seem to be historically the more successful regimes. Of course, the veil of ignorance means that this kind of particular information is not available to the parties in the original position, but it is available to you and me in setting up justice as fairness.⁸ We are perfectly free to use it to specify the principles of justice we make available to the parties.

A second way of drawing up a list of basic rights and liberties is analytical: we consider what liberties provide the political and social conditions essential for the adequate development and full exercise of the two moral powers of free and equal persons (§7.1). Following this we say: first, that the equal political liberties and freedom of thought enable citizens to develop and to exercise these powers in judging the justice of the basic structure of society and its social policies; and second, that liberty of conscience and freedom of association enable citizens to develop and exercise their moral powers in forming and revising and in rationally pursuing (individually or, more often, in association with others) their conceptions of the good.

Those basic rights and liberties protect and secure the scope required for the exercise of the two moral powers in the two fundamental cases just mentioned: that is to say, the first fundamental case is the exercise of those powers in judging the justice of basic institutions and social policies; while the second fundamental case is the exercise of those powers in pursuing our conception of the good. To exercise our powers in these ways is essential to us as free and equal citizens.

8. Here I should mention that there are three points of view in justice as fairness that it is essential to distinguish: the point of view of the parties in the original position, the point of view of citizens in a well-ordered society, and the point of view of you and me who are setting up justice as fairness as a political conception and trying to use it to organize into one coherent view our considered judgments at all levels of generality. Keep in mind that the parties are, as it were, artificial persons who are part of a procedure of construction that we frame for our philosophical purposes. We may know many things that we keep from them. For these three points of view, see *Political Liberalism*, p. 28.

13.5. Observe that the first principle of justice applies not only to the basic structure (both principles do this) but more specifically to what we think of as the **constitution**, whether written or unwritten. Observe also that some of these liberties, especially the equal political liberties and freedom of thought and association, are to be guaranteed by a constitution (*Theory*, chap. IV). What we may call “**constituent power**,” as opposed to “**ordinary power**,”⁹ is to be suitably institutionalized in the form of a regime: in the **right to vote and to hold office**, and in so-called bills of rights, as well as in the procedures for amending the constitution, for example.

These matters belong to the so-called constitutional essentials, these essentials being those crucial matters about which, **given the fact of pluralism, working political agreement is most urgent** (§9.4). In view of the fundamental nature of the basic rights and liberties, explained in part by the fundamental interests they protect, and given that the power of the people to constitute the form of government is a superior power (distinct from the ordinary power exercised routinely by officers of a regime), the first principle is assigned priority.

This priority means (as we have said) that the second principle (which includes the difference principle as one part) is always to be applied within a setting of background institutions that satisfy the requirements of the first principle (including the requirement of securing the fair value of the political liberties), as by definition they will in a well-ordered society.¹⁰ **The fair value of the political liberties ensures that citizens similarly gifted and motivated have roughly an equal chance of influencing the government’s policy and of attaining positions of authority irrespective of their economic and social class.**¹¹ To explain the priority of the first principle over the second:

9. This distinction is derived from Locke, who speaks of the people’s power to constitute the legislative as the first and fundamental law of all commonwealths. John Locke, *Second Treatise of Government*, §§134, 141, 149.

10. It is sometimes objected to the difference principle as a principle of distributive justice that it contains no restrictions on the overall nature of permissible distributions. It is concerned, the objection runs, solely with the least advantaged. But this objection is incorrect: it overlooks the fact that the parts of the two principles of justice are designed to work in tandem and apply as a unit. The requirements of the prior principles have important distributive effects. Consider the effects of fair equality of opportunity as applied to education, say, or the distributive effects of the fair value of the political liberties. We cannot possibly take the difference principle seriously so long as we think of it by itself, apart from its setting within prior principles.

11. [See *Political Liberalism*, p. 358.]

this priority rules out exchanges (“trade-offs,” as economists say) between the basic rights and liberties covered by the first principle and the social and economic advantages regulated by the difference principle. For example, the equal political liberties cannot be denied to certain groups on the grounds that their having these liberties may enable them to block policies needed for economic growth and efficiency.

Nor can we justify a selective service act that grants educational deferments or exemptions to some on the grounds that doing this is a socially efficient way both to maintain the armed forces and to provide incentives to those otherwise subject to conscription to acquire valuable skills by continuing their education. Since conscription is a drastic interference with the basic liberties of equal citizenship, it cannot be justified by any needs less compelling than those of the defense of these equal liberties themselves (*Theory*, §58: 333f.).

A further point about priority: in asserting the priority of the basic rights and liberties, we suppose reasonably favorable conditions to obtain. That is, we suppose historical, economic and social conditions to be such that, provided the political will exists, effective political institutions can be established to give adequate scope for the exercise of those freedoms. These conditions mean that the barriers to constitutional government (if such there are) spring largely from the political culture and existing effective interests, and not from, for instance, a lack of economic means, or education, or the many skills needed to run a democratic regime.¹²

13.6. It is important to note a distinction between the first and second principles of justice. The first principle, as explained by its interpretation, covers the constitutional essentials. The second principle requires fair equality of opportunity and that social and economic inequalities be governed by the difference principle, which we discuss in §§17–19. While some principle of opportunity is a constitutional essential—for example, a principle requiring an open society, one with careers open to talents (to use the eighteenth-century phrase)—fair equality of opportunity requires more than that, and is not counted a constitutional essential. Similarly, although a

12. The priority (or the primacy) of the basic equal liberties does not, contrary to much opinion, presuppose a high level of wealth and income. See Amartya Sen and Jean Dreze, *Hunger and Public Action* (Oxford: Oxford University Press, 1989), chap. 13; and Partha Dasgupta, *An Inquiry into Well-Being and Destitution* (Oxford: Oxford University Press, 1993), chaps. 1–2, 5 and passim.

social minimum providing for the basic needs of all citizens is also a constitutional essential (§38.3-4; §49.5), the difference principle is more demanding and is not so regarded.

The basis for the distinction between the two principles is not that the first expresses political values while the second does not. Both principles express political values. Rather, we see the basic structure of society as having two coordinate roles, the first principle applying to one, the second principle to the other (*Theory*, §11: 53). In one role the basic structure specifies and secures citizens' equal basic liberties (including the fair value of the political liberties (§45)) and establishes a just constitutional regime. In the other role it provides the background institutions of social and economic justice in the form most appropriate to citizens seen as free and equal. The questions involved in the first role concern the acquisition and the exercise of political power. To fulfill the liberal principle of legitimacy (§12.3), we hope to settle at least these questions by appeal to the political values that constitute the basis of free public reason (§26).

The principles of justice are adopted and applied in a four-stage sequence.¹³ In the first stage, the parties adopt the principles of justice behind a veil of ignorance. Limitations on knowledge available to the parties are progressively relaxed in the next three stages: the stage of the constitutional convention, the legislative stage in which laws are enacted as the constitution allows and as the principles of justice require and permit, and the final stage in which the rules are applied by administrators and followed by citizens generally and the constitution and laws are interpreted by members of the judiciary. At this last stage, everyone has complete access to all the facts. The first principle applies at the stage of the constitutional convention, and whether the constitutional essentials are assured is more or less visible on the face of the constitution and in its political arrangements and the way these work in practice. By contrast the second principle applies at the legislative stage and it bears on all kinds of social and economic legislation, and on the many kinds of issues arising at this point (*Theory*, §31: 172-176). Whether the aims of the second principle are realized is far more difficult to ascertain. To some degree these matters are always open to reasonable differences of opinion; they depend on inference and judgment in assessing complex social and economic information. Also, we can expect more agreement on constitutional essentials than on issues of distributive justice in the narrower sense.

13. [See *Theory*, §31: 172-176, and *Political Liberalism*, pp. 397-398.]

Thus the grounds for distinguishing the constitutional essentials covered by the first principle and the institutions of distributive justice covered by the second are not that the first principle expresses political values and the second does not. Rather, the grounds of the distinction are four:

- (a) The two principles apply to different stages in the application of principles and identify two distinct roles of the basic structure;
- (b) It is more urgent to settle the constitutional essentials;
- (c) It is far easier to tell whether those essentials are realized; and
- (d) It seems possible to gain agreement on what those essentials should be, not in every detail, of course, but in the main outlines.

13.7. One way to see the point of the idea of constitutional essentials is to connect it with the idea of loyal opposition, itself an essential idea of a constitutional regime. The government and its loyal opposition agree on these constitutional essentials. Their so agreeing makes the government legitimate in intention and the opposition loyal in its opposition. Where the loyalty of both is firm and their agreement mutually recognized, a constitutional regime is secure. Differences about the most appropriate principles of distributive justice in the narrower sense, and the ideals that underlie them, can be adjudicated, though not always properly, within the existing political framework.

While the difference principle does not fall under the constitutional essentials, it is nevertheless important to try to identify the idea of equality most appropriate to citizens viewed as free and equal, and as normally and fully cooperating members of society over a complete life. I believe this idea involves reciprocity¹⁴ at the deepest level and thus democratic equality properly understood requires something like the difference principle. (I say “something like,” for there may be various nearby possibilities.) The re-

14. [As understood in justice as fairness, reciprocity is a relation between citizens expressed by principles of justice that regulate a social world in which all who are engaged in cooperation and do their part as the rules and procedures require are to benefit in an appropriate way as assessed by a suitable benchmark of comparison. The two principles of justice, including the difference principle with its implicit reference to equal division as a benchmark, formulate an idea of reciprocity between citizens. For a fuller discussion of the idea of reciprocity, see *Political Liberalism*, pp. 16–17, and the introduction to the paperback edition, pp. xlv, xlvi, li. The idea of reciprocity also plays an important part in “The Idea of Public Reason Revisited,” *University of Chicago Law Review*, 64 (Summer 1997): 765–807, reprinted in *The Law of Peoples* (Cambridge, Mass.: Harvard University Press, 1999) and *Collected Papers*.]

maining sections of this part (§§14–22) try to clarify the content of this principle and to clear up a number of difficulties.

§14. The Problem of Distributive Justice

14.1. The problem of distributive justice in justice as fairness is always this: **how are the institutions of the basic structure to be regulated as one unified scheme of institutions so that a fair, efficient, and productive system of social cooperation can be maintained over time, from one generation to the next?** Contrast this with the very different problem of how a given bundle of commodities is to be distributed, or allocated, among various individuals whose particular needs, desires, and preferences are known to us, and who have not cooperated in any way to produce those commodities. This second problem is that of **allocative justice** (*Theory*, §11: 56; §14: 77).

To illustrate: accepting the assumptions implied by interpersonal cardinal comparisons of well-being, we might, for example, allocate the bundle of commodities so as to achieve the greatest satisfaction summed over these individuals from the present into the future. As a political conception of justice, the classical principle of utility (as found in Bentham and Sidgwick) can be seen as **adapting the idea of allocative justice so as to be a single principle for the basic structure over time.**

14.2. We **reject the idea of allocative justice as incompatible with the fundamental idea by which justice as fairness is organized:** the idea of society as a fair system of social cooperation over time. Citizens are seen as cooperating to produce the **social resources on which their claims are made.** In a well-ordered society, in which both the equal basic liberties (with their fair value) and fair equality of opportunity are secured, the distribution of income and wealth illustrates what we may call pure background procedural justice. The basic structure is arranged so that when everyone follows the publicly recognized rules of cooperation, and honors the claims the rules specify, **the particular distributions of goods that result are acceptable as just (or at least as not unjust) whatever these distributions turn out to be.**

To elaborate: within the framework of background justice set up by the basic structure, individuals and associations may do as they wish insofar as the rules of institutions permit. Observe that particular distributions cannot be judged at all apart from the claims (entitlements) of individuals earned by their efforts within the fair system of cooperation from which those distributions result. In contrast to **utilitarianism**, the concept of allocative jus-

and natural ability) are **not fixed natural assets with a constant capacity**. They are merely potential and cannot come to fruition apart from social conditions; and when realized they can take but one or a few of many possible forms. Educated and trained abilities are always a selection, and a small selection at that, from a wide range of possibilities that might have been fulfilled. Among what affects their realization are social attitudes of encouragement and support, and institutions concerned with their early discipline and use. Not only our conception of ourselves, and our aims and ambitions, but also our realized abilities and talents, reflect our personal history, opportunities and social position, and the influence of good and ill fortune.

16.3. To sum up: for the two kinds of reasons noted in this and the preceding section, **we take the basic structure as the primary subject**. This structure comprises social institutions within which human beings may develop their moral powers and become fully cooperating members of a society of free and equal citizens. And as a framework that preserves **background justice over time from one generation to the next it realizes the idea (central to justice as fairness) of pure background procedural justice as an ideal social process (as explained under the first kind of reason)**. It also answers to the **public role of educating citizens** to a conception of themselves as free and equal; and, when properly regulated, it encourages in them **attitudes of optimism and confidence** in their future, and a sense of being **treated fairly in view of the public principles** which are seen as effectively regulating economic and social inequalities (as explained under the second kind of reason).

So far, then, starting with the basic structure seems to accord with the other ideas of justice as fairness, something we could not have foreseen at the outset. A sharp definition of that structure might have gotten in the way of fitting it into these other ideas, just as a sharp definition of them would have gotten in the way of fitting them to it. (Recall the remarks in §4.3.)

§17. Who Are the Least Advantaged?

17.1. We have referred to the **least advantaged**, but who are they and how are they singled out? To answer these questions we introduce the idea of **primary goods**. These are various social conditions and all-purpose means that are generally necessary to enable citizens adequately to develop and fully exercise their two moral powers, and to pursue their determinate conceptions of the good. Here we look to the social requirements and the nor-

mal circumstances of human life in a democratic society. Primary goods are things needed and required by persons seen in the light of the political conception of persons, as citizens who are fully cooperating members of society, and not merely as human beings apart from any normative conception. These goods are things citizens need as free and equal persons living a complete life; they are not things it is simply rational to want or desire, or to prefer or even to crave. We use the political conception, and not a comprehensive moral doctrine, in specifying those needs and requirements.

What count as primary goods depends, of course, on various general facts about human needs and abilities, their normal phases and requirements of nurture, relations of social interdependence, and much else. We need at least a rough idea of rational plans of life showing why these plans usually have a certain structure and depend on certain primary goods for their formation, revision, and successful execution.²³ But, as stressed above, the account of primary goods does not rest solely on psychological, social, or historical facts. While the list of primary goods rests in part on the general facts and requirements of social life, it does so only together with a political conception of the person as free and equal, endowed with the moral powers, and capable of being a fully cooperating member of society. This normative conception is necessary to identify the appropriate list of primary goods.²⁴

17.2. We distinguish five kinds of such goods:

(i) The basic rights and liberties: freedom of thought and liberty of conscience, and the rest (§13). These rights and liberties are essential institutional conditions required for the adequate development and full and informed exercise of the two moral powers (in the two fundamental cases (§13.4)).

(ii) Freedom of movement and free choice of occupation against a background of diverse opportunities, which opportunities allow the pursuit of a variety of ends and give effect to decisions to revise and alter them.

(iii) Powers and prerogatives of offices and positions of authority and responsibility.

(iv) Income and wealth, understood as all-purpose means (having an ex-

23. A sketch of the features of rational plans is given in *Theory*, chap. VII.

24. Unhappily *Theory* is at best ambiguous on this matter. I am indebted to a number of people, especially to Joshua Cohen and Joshua Rabinowitz; and to Allen Buchanan, T. M. Scanlon, and Samuel Scheffler for valuable discussion; and to Michael Teitelman, who first raised the difficulty.

change value)²⁵ generally needed to achieve a wide range of ends whatever they may be.

(v) The social bases of self-respect, understood as those aspects of basic institutions normally essential if citizens are to have a lively sense of their worth as persons and to be able to advance their ends with self-confidence.

17.3. The two principles of justice assess the basic structure according to how it regulates citizens' shares of primary goods, these shares being specified in terms of an appropriate index. Note that primary goods are given by reference to objective features of citizens' social circumstances, features open to public view: their secured institutional rights and liberties, their available fair opportunities, their (reasonable) expectations of income and wealth seen from their social position, and so on. As we have said, the inequalities to which the difference principle applies are differences in citizens' (reasonable) expectations of primary goods over a complete life. These expectations are their life-prospects. In a well-ordered society where all citizens' equal basic rights and liberties and fair opportunities are secure, the least advantaged are those belonging to the income class with the lowest expectations.²⁶ To say that inequalities in income and wealth are to be arranged for the greatest benefit of the least advantaged simply means that we are to compare schemes of cooperation by seeing how well off the least advantaged are under each scheme, and then to select the scheme under

25. For this idea of exchange value, see Rawls, "Fairness to Goodness," *Philosophical Review* 84 (October 1975): §III. Also in *Collected Papers*.

26. Note here that in the simplest form of the difference principle the individuals who belong to the least advantaged group are not identifiable apart from, or independently of, their income and wealth. The least advantaged are never identifiable as men or women, say, or as whites or blacks, or Indians or British. They are not individuals identified by natural or other features (race, gender, nationality, and the like) that enable us to compare their situation under all the various schemes of social cooperation it is feasible to consider. Taking these cooperative schemes as possible social worlds (let's say) over which the names of individuals refer to (rigidly designate) the same individuals in each possible (social) world, the term "the least advantaged" is not a rigid designator (to use Saul Kripke's term, see *Naming and Necessity* (Cambridge, Mass.: Harvard University Press, 1972)). Rather, the worst off under any scheme of cooperation are simply the individuals who are worst off under that particular scheme. They may not be those worst off in another. Even supposing, for example, that it turns out, as commonsense political sociology might suggest, that the least advantaged, identified by income and wealth, include many individuals born into the least-favored social class of origin, and many of the least (naturally) endowed and many who experience more bad luck and misfortune (§16), nevertheless those attributes do not define the least advantaged. Rather, it happens that there may be a tendency for such features to characterize many who belong to that group.

which the least advantaged are better off than they are under any other scheme.

To highlight the objective character of primary goods, note that it is not self-respect as an attitude toward oneself but the social bases of self-respect that count as a primary good.²⁷ These social bases are things like the institutional fact that citizens have **equal basic rights**, and the **public recognition** of that fact and that everyone endorses the difference principle, itself a form of **reciprocity**. The objective character of primary goods also is shown in the fact that in applying the principles of justice we do not consider estimates of citizens' overall happiness as given, say, by **the fulfillment of their (rational) preferences, or their desires (as in a utilitarian view)**. Nor do we consider their good in the light of some moral or associational or personal ideal. We also do not need a measure of citizens' moral powers and other abilities, or of how far citizens have actually realized them, so long as their **powers** and **abilities** suffice for them to be normal cooperating members of society.²⁸

Citizens' appropriate shares of primary goods are not regarded as approximating to their good as specified by any particular comprehensive religious, philosophical, or moral doctrine; or even as specified by what several such doctrines may hold in common concerning our (comprehensive) good. The account of primary goods belongs, then, wholly within justice as fairness as a political conception of justice. The reason for remaining within the political conception is by now familiar: **it is in order to hold open the possibility of finding a public basis of justification supported by an overlapping consensus.**

Primary goods, then, are what free and equal persons (as specified by the political conception) need as citizens. These goods belong to a partial conception of the good that citizens, who affirm a plurality of conflicting comprehensive doctrines, can agree upon for the purpose of making the interpersonal comparisons required for workable political principles. While **pluralism means that there can be no agreement on a complete conception of the good grounded in a comprehensive doctrine, some conceptions of the good are indispensable for any account of justice, political or other; and they can be freely used in justice as fairness so long as they fit within it as political conceptions (§43).** The partial conception of the good set out by the account of primary goods is one of them.

27. *Theory* is ambiguous on this point. It fails to distinguish between self-respect as an attitude, the preserving of which is a fundamental interest, and the social bases that help to support that attitude.

28. On this point, see the discussion of the provision of health care in Part IV, §51.

17.4. A final comment: there are at least two ways to proceed in specifying a list of primary goods. One is to look at the various comprehensive doctrines actually found in society and specify an index of such goods as a kind of average of what those who affirm the opposing doctrines would need by way of institutional protections and all-purpose means. Doing this might seem the best way to achieve an overlapping consensus.

But this is not how justice as fairness proceeds. Instead, it works up a political conception from the fundamental idea of society as a fair system of social cooperation. The hope is that this conception with its account of primary goods can win the support of an overlapping consensus. We leave aside the comprehensive doctrines that now exist, or have existed, or might exist. Our thought is not that primary goods are fair to conceptions of the good associated with comprehensive doctrines by striking a fair balance between them. Rather, primary goods are fair to free and equal citizens: these goods enable them to advance their permissible conceptions of the good (those the pursuit of which are compatible with justice).

§18. The Difference Principle: Its Meaning

18.1. We now turn to the difference principle as a principle of distributive justice in the narrow sense. Recall that it is subordinate to both the first principle of justice (guaranteeing the equal basic liberties) and the principle of fair equality of opportunity (§13.1). It works in tandem with these two prior principles and it is always to be applied within background institutions in which those principles are satisfied.²⁹

Social cooperation, we assume, is always productive, and without cooperation there would be nothing produced and so nothing to distribute. This assumption is not emphasized sufficiently in *Theory*, §§12–13. Figure 1 implies that there is production: MAG and LAG (x_1 and x_2 in the figure in *Theory*) are now representative individuals of the more and the less advantaged groups respectively, the two groups engaged in productive cooperation.³⁰ The OP curve (P for production) runs northeast from the origin until it bends downward to the southeast.³¹

29. The explanation of the principle of (Pareto) efficiency for institutions is found in *Theory*, §12: 58–62.

30. This figure is similar to figure 6 in *Theory*, §13: 66.

31. For example, the figures in *Theory*, §12: 59f. assume that there is an already given bundle of goods to be shared between the two persons x_1 and x_2 . This is shown in the fact that the efficiency frontier runs northwest and southeast. And no mention is made of these persons as being engaged in cooperation to produce those goods.